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File No.: EXP202312276

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On March 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against CONFEDERACION EUSKAL LANGILEEN ALKARTASUNA (hereinafter, the respondent), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: A.A.A., B.B.B., C.C.C. (hereinafter, the claiming parties) filed a complaint with the Spanish Agency for Data Protection on July 17, 2023.

On July 18, 2023, D.D.D. (hereinafter, the claiming parties) filed a complaint with the Spanish Agency for Data Protection.

On July 26, 2023, E.E.E. (hereinafter, the claiming parties) filed a complaint with the Spanish Agency for Data Protection.

All complaints are directed against EUZKO LANGILLEEN ALKARTASUNA SOLIDARIDAD DE TRABAJADORES VASCOS with NIF G48090096 (hereinafter, SINDICATO ELA), and concern the same fact, therefore, in the interest of procedural economy, due to the identity of subject, facts, and grounds, a single sanctioning procedure is opened.

The reasons on which the complaints are based are as follows:

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On December 14, 2022, the process of establishing the union in their company began, and when the company delivered the electoral roll to the union representative, he shared it through a WhatsApp group he has with members of his union section, without authorization.

They provide a photograph of the WhatsApp group where it can be seen that the data included are:

- name and surname
- date of birth
- ID number
- Seniority in the company

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to SINDICATO ELA, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on September 20, 2023, as noted in the acknowledgment of receipt that is part of the file. No response has been received to this transfer letter.

THIRD: On October 17, 18, and 26, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claiming parties was admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (GDPR) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that SINDICATO ELA collects and retains, among others, the following personal data of individuals: name and surname, ID number, date of birth, among other processing activities.

SINDICATO ELA carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

Article 4(12) of the GDPR broadly defines "personal data breaches" (hereinafter, security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of, or unauthorized disclosure or access to personal data transmitted, stored, or otherwise processed."

In this case, there is a personal data security incident under the circumstances mentioned above, categorized as a confidentiality breach, as the electoral roll of the company where the complainants work was disseminated in a WhatsApp group of the SINDICATO ELA union section.

Among the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1(f) of Article 5 of the GDPR. Meanwhile, the security of personal data is regulated in Article 32 of the GDPR, which governs the security of processing.

III

Principle of Integrity and Confidentiality

Article 5.1(f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

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In this case, it is noted that the personal data of the complainants, contained in the SINDICATO ELA database, were improperly exposed to a third party, as a copy of the electoral roll, which included the name and surname, ID number, and date of birth of all members of the electoral roll of the company, was disseminated in a WhatsApp group, among which were the personal data of the complainants.

In accordance with the evidence available at this moment regarding the initiation of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the known facts could constitute an infringement attributable to SINDICATO ELA for violation of Article 5.1(f) of the GDPR.

IV

Classification of the Infringement of Article 5.1(f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1(f) of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount: a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year limitation period: infringements that constitute a substantial violation of the articles mentioned therein, and in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Proposal for Sanction for the Infringement of Article 5.1(f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment regarding the initiation of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

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As aggravating factors:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages they have suffered (section a): due to the unauthorized access to the personal data of the entire electoral roll of the company, which included the personal data of the complainants (name and surname, date of birth, ID number) having been shared through a WhatsApp group.

It is also considered appropriate to adjust the sanction to be imposed according to the following criteria established in section 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

- The link between the infringer's activity and the processing of personal data (section b): SINDICATO ELA is an entity accustomed to processing personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 5.1.f) of the GDPR, allows for an initial sanction of €3,000 (three thousand euros).

VI

Security of processing

Article 32 "Security of processing" of the GDPR states:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may

include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. When assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in section 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

In this case, the facts recorded in the complaints submitted reveal that SINDICATO ELA did not have appropriate security measures in place to prevent the dissemination of the electoral roll of the company, which included the personal data of, among others, the complainants, as the electoral roll was shared through a WhatsApp group of the union.

Therefore, it has been established that SINDICATO ELA did not have adequate measures to prevent a situation like the one at hand.

In accordance with the evidence available in this initiation agreement for sanctioning proceedings, and without prejudice to the outcome of the instruction, it is considered that the known facts could constitute an infringement attributable to SINDICATO ELA for violating Article 32 of the GDPR.

VII

Classification and qualification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could imply the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 2% of the total worldwide annual turnover of the preceding financial year, opting for the higher amount:

- a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and conduct referred to in sections 4,

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5 and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law.”

For the purposes of the statute of limitations, Article 73 “Serious Offenses” of the LOPDGDD indicates:

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious offenses and will be subject to a two-year statute of limitations for violations that constitute a substantial breach of the articles mentioned therein and, in particular, the following:

(...)

- f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.” (...)

VIII

Proposal for sanction for the violation of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance

with the evidence available at this time of the initiation of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the violation committed by breaching the provisions of Article 32 of the GDPR, initially setting a sanction of €2,000 (two thousand euros).

IX

Imposition of measures

If the violation is confirmed, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified period...”, in the resolution adopted, SINDICATO ELA may be required to notify this Agency within three months of the adoption of the following measures, without prejudice to others that may arise from the instruction of the procedure:

Adopt appropriate organizational and technical measures to prevent communication by any means containing unauthorized personal data by members of the organization, including union delegates. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the requirements of this body may be considered an administrative violation in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures. Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against EUZKO LANGILLEEN ALKARTASUNA SOLIDARIDAD DE TRABAJADORES VASCOS, with NIF G48090096, for

- the alleged violation of Article 5.1.f) of the GDPR classified in Article 83.5 of the GDPR
- the alleged violation of Article 32 of the GDPR classified in Article 83.4 of the GDPR,

SECOND: TO APPOINT F.F.F. as instructor and G.G.G. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be

- For the alleged violation of Article 5.1.f) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of €3,000.00
- For the alleged violation of Article 32 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of €2,000.00

without prejudice to what may result from the instruction.

FIFTH: TO NOTIFY this agreement to EUZKO LANGILLEEN ALKARTASUNA SOLIDARIDAD DE TRABAJADORES VASCOS, with NIF G48090096, granting a hearing period of ten business days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document. If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article

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64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 4,000 euros, concluding the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 4,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 3,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (4,000 euros or 3,000 euros), you must make it effective by depositing it into account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

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SECOND: On March 26, 2024, the respondent has proceeded to pay the sanction in the amount of 3,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the renunciation of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

FOURTH: The Initiation Agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except in relation to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202312276, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER CONFEDERACION EUSKAL LANGILEEN ALKARTASUNA to notify the Agency of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution within 3 months from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to CONFEDERACION EUSKAL LANGILEEN ALKARTASUNA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative

Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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